MINWELL INVESTMENTS (PRIVATE) LIMITED
t/a GLOBAL LUBRICANTS ZIMBABWE
versus
ENVIRONMENTAL MANAGEMENT AGENCY
and
ZIMBABWE REVENUE AUTHORITY

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE; 13 March and 16 April 2026

HIGH COURT OF ZIMBABWE
Civil Division
ISSUED
HCH6353/25 16 Apr 2026
HARARE
JUDICIAL SERVICE COMMISSION

Court Application

T Chagudumba, for the applicant
O Kondongwe, for the 1st respondent
No appearance for the 2nd respondent

MUCHAWA J: The applicant is a company incorporated with limited liability and registered in accordance with the laws of Zimbabwe.

The first respondent is an agency established in terms of the Environmental Management Act [*Chapter 20:27*], a body corporate. The second respondent is an authority established in terms of the Revenue Authority Act [*Chapter 23:11*]. It is the agent of the State tasked with assessing collecting and enforcing payment of all revenues.

This is an application for a declarator made in terms of s 14 of the High Court Act [*Chapter 7:06*]. The draft order sought is couched as follows.

> "IT IS HEREBY ORDERED THAT.
> 1. It is declared that a Hazardous Substance License in terms of s 10 of Environmental Management Control of Hazardous Substances (General) Regulations, 2018 (SI 268 of 2018) is a composite licence for manufacture, store, sell, use, import, export, transport or distribute of hazardous substances.
> 2. It is declared that the respondents have no legal basis for demanding a separate Importation Licence in addition to the Hazardous Substance Licence that applicant is issued with.
> 3. The respondents' demands for an additional Importation License for Hazardous Substances be and is hereby declared unlawful, null and void.
> 4. The applicant is allowed to import stock, use, sell, transport or distribute all petroleum lubricant products using a single Hazardous Substances Green Class License.

5. The first respondent is ordered to reimburse the applicant in USD Cash 375.00 paid for an unlawfully levied HS Import License. EMA Fiscal Tax Invoice HRPM 100 6053 dated 1st December 2025 refer.
6. The first respondent shall pay costs of suits."

The application is opposed. The first respondent raised the point *in limine* that the matter is improperly before the court as the applicant has not exhausted domestic remedies.

The applicant also raised preliminary points. The first point is that deponent to the opposing affidavit has no authority to act as he did and the opposition is invalid because of a defective opposing affidavit which does not respond paragraph-by-paragraph to the founding affidavit.

After the raising of the point on the authority of the deponent the first respondent filed a resolution on the 10th March 2026 which I will reproduce below.

"Special Resolution SBR 1 February 2026 of: ENVIROMENTAL MANAGEMENT BOARD

I, the undersigned, being the Board Chairperson of the Environment Management Agency, consent and agree that the following special resolution was made on 5 February 2026 at 685 Lorraine Drive, Bluffhill, Harare.

I do hereby consent to the adoption of the following resolution:

For the purpose of filing opposing papers in an application for a Declarator in Case No. HCH 6353/25 against the Agency by Minwell Investments (Private) Limited t/a Global Lubricants Zimbabwe, the Environment Management Board herein pass special authority to the following persons(s): Mr Aaron Chigona (Director General):

In his official capacity, to represent the Agency with any action relating to such application.

Therefore, it is resolved that the Agency shall authorize the above-mentioned to perform the acts to carry out this special resolution.

…….
Witness (signed)
……..
Ambassador Z W Nsimbi
Chairperson: Environment Management Board
5th February 2026
Date"

The above resolution was incorporated into the record by consent of the parties in line with the trite position that when a party is challenged on the absence of a resolution granting authority to the deponent of an affidavit, that can be produced.

Mr *Kondongwe* hoped that this would cure the defect in this case. Unfortunately, Mr *Chagudumba* held a different view and persisted that the resolution filed is fatally defective.

The first attack on the resolution is that though it purports to be a resolution of the board, it is in fact a resolution by the Board Chairperson.

It was argued that s 11 of the Environment Management Act [Chapter 20:27] provides for a board comprised of a minimum of 9 members and a maximum of 15 members. A majority of the board members constitute a quorum and there was need for a quorum to pass the resolution. In this case, it was argued that the resolution was passed by only one person.

The second shortcoming pointed to is that the special resolution was passed on 5 February 2026 and was effective therefrom. This was way after the opposition was filed on 29 December 2025.

Reliance was placed on the case of *Chinanga* v *Stanbic Bank Zimbabwe Limited* HH 294/24 wherein a resolution was filed after the opposing affidavit was filed and did not ratify prior acts. It was held that the deponent had no authority to file the opposing affidavit and the matter was treated as unopposed.

It was prayed that this matter be treated similarly.

Mr *Kondongwe* submitted that the resolution is simply an extract from the minutes of the board which are not before the court. His interpretation of the resolution is that the board chairperson is consenting and agrees that the resolution was made by the board. It would be an absurdity to have all the members sign the resolution and it is general practice to have the chairperson and secretary sign. The Act was said not to provide that a resolution should be signed by all board members to be compliant.

Regarding the signing of the resolution after the notice of opposition was said to be permissible in company law through the act of ratification. Reference was made to the case of *Construction Resources Africa (Private) Limited* v *Central African Building and Construction Company (Private) Limited t/a Central African Building Construction* SC 110/22 wherein 2 company law principles were considered being unanimous assent and ratification and it was concluded that a board can ratify acts conducted prior.

Mr *Chagudumba* countered that ratification must be express as per the cases referred to. The case of Construction Resources Africa supra was said to be distinct and inapplicable to the facts *in casu*.

Reference was made to the case of *Mpofu* v *ZMDF* SC 33/24 for the assertion that statutory bodies should comply with statutes.

I wish to start with a close look at the resolution itself and establish whether, on the face of it, it shows that the board is the one which made the resolution.

The title and preamble of the resolution makes clear that it is a resolution of the Environment Management Board made on 5 February 2026 at 685 Lorraine Drive, Bluffhill Harare.

Indeed, the resolution is inelegantly drafted but the chairperson is simply communicating the contents of what the board resolved.

The resolution clearly gives Mr Aaron Chigona (Director General) the authority to represent the first respondent in case number HCH 6353/25 by carrying out all necessary acts.

I cannot agree with Mr *Chagudumba* that, due to the inelegant drafting, the resolution is that of the board chairperson and not the board. It gives details of the nature of the authority and where and when it was granted. See *T N Gold – Acturus Mine Pvt Ltd* v *Zvanyadza and EMA* HH 612/21.

As to the second issue, it is common cause that the resolution was signed on 5 February 2026 well after the filing of the notice of opposition on 29 December 2025.

In the *Chinanga* v *Stanbic Bank Zimbabwe Limited* supra matter it was held as follows:

> "Even though the deponent Mr Mawere stated in his affidavit that he was authorised to depose to the affidavit, he cannot rely on the board resolution filed on 28 May 2024 which was made after Mr Mawere had already deposed to the opposing affidavit. Sadly, for Mr Mawere, the resolution did not ratify the prior authority in question which he deposed to have had. The filed resolution is also clear that it would be effective on the date that the last director signed it which was 27 May 2024. Therefore, Mr Mawere failed to show that he was duly authorised to represent the respondent in this application."

What this means is that the deponent to the opposing affidavit can have his authority saved if we find that the board ratified his prior actions or the case of *Constitution Resources Africa (Private) Limited supra* is applicable in some way.

In the *Construction Resources Africa (Pvt) Ltd supra* matter there was ratification of the issuance of summons, albeit 2 years later. It was found while the manner in which the ratification was done was rather unusual, it was not invalid. The court reasoned as follows:

> "The Vierras adopted these measures out of sheer desperation. Their attempts to involve the Registrar of companies had been unsuccessful. The Musukuma brothers appeared to have succeeded in wrestling the respondent from their grip without fulfilling their contractual obligations. The very essence of ratification is that it is retrospective in effect. It takes places after the event. It is permissible in corporate life."

Though the resolution does not expressly use the words ratify or ratification, it authorizes the deponent, to among other things file opposing papers in an application for a declaratur. In other words, it ratifies the action of deposing to the opposing affidavit which act had already occurred. This is permissible.

The case of *Mpofu* v *Zimbabwe Manpower Development Fund* SC 338/24 is distinct from this one. Therein the CEO as an *ex officio* member of the board had instituted proceedings to reclaim assets from the appellant, a former employee. In terms of the Zimbabwe Manpower Planning and Development Act and the Public Entitles Corporate Governance Act, the CEO could only derive authority from the board to run the affairs of the public entity. He had not abided by the statutory imperative to notify the Minister of the absence of the Board. He was found to lack authority to depose to the impugned founding papers as there was no board resolution. That is not the position *in casu*.

It is my finding therefore that the deponent to the opposing affidavit had authority to depose to same. Though a board resolution was filed post facto, it ratified the earlier actions.

The point in limine on exhaustion of domestic remedies was not pursued.

I therefore find no merit in the point *in limine* on authority of the deponent and proceed to consider the merits of the matter. The parties agreed that I proceed to decide the merits on the papers filed of record as the dispute is essentially one of a difference of opinion on the interpretation of the law.

A brief background to the dispute is important at this juncture. The applicant is in the business of importing and selling Caltex Petroleum Lubricating Oils and Greases for over the last sixteen years. Applicant is the holder of a valid Hazardous License Class Green. A copy is supplied. During this period, the applicant has been seamlessly importing products through the Beitbridge Border Post till December 2024 when the second respondent demanded a separate "importation EMA License" for purposes of customs clearance. The amount demanded then was eventually waived and no issues were raised from December 2024 until February 2025 when the second respondent once again demanded the "Importation EMA license." The second respondent indicated that the Hazardous License Class Green only covers storage and sale and does not extend to importation.

Engagements by letter, calls, text messages to the first respondent were not responded to in which a clarification of the correct legal position was sought. From March to October 2025 no further demand for a separate importation license was made. However, the demand was renewed for a consignment imported in November 2025. On 1 December 2025, the applicant was forced to purchase a separate EMA "import" Licence. A fine was charged for importation of the consignment without a licence. It was at this point that the first respondent sided with the second respondent on the need for two separate licences.

The applicant's submissions.

It is submitted that s 10 of the Environmental Management Control of Hazardous Substances (General) Regulations, 2018 (SI 268 of 2018) makes clear that one can be issued a hazardous substance license in order to manufacture, store, sell, use, import, export, transport or distribute hazardous substances. The First Schedule to the Regulations deals with the applicable fees and the first type of First Schedule is for a licence for "Manufacturer, user, importer, seller, storage of hazardous substances/products per plant, per person, per premise respectively, per year.

The Second Schedule to the Regulations has the prescribed form of the license application and it speaks to "Application for hazardous substances licence."

It is averred that the Ministry responsible, the Ministry of Finance, Economic Development and Investment Promotion, does not require an importation licence for their products as evidenced by the release order for the latest consignment.

The advanced argument is that the Hazardous Substances Green Class Licence is a composite one which covers everything from manufacture, store, sell, transport, import, export or use of a hazardous substance depending on one's business.

It is contended that the respondents do not have any legal basis to demand a separate importation licence and are acting unlawfully in making such demand and levying unjustified fines.

The first respondent's submissions

Per *contra*, the first respondent avers that the applicant has misinterpreted s 10 of the Environmental Management Control of Hazardous Substances (General) Regulations by concluding that the single, automatic composite licence covers all the regulated activities.

The provision is said to clearly prohibit individuals and entities from undertaking the listed activities without a licence from the first respondent. Such provision, it is argued, does not state that there will be one composite licence for all activities.

The Hazardous Substances Green Class Licence granted is said to be solely for storage and sale and was granted after the first respondent assessed the safety, environmental risk and compliance of their premises.

It is alleged that there are other risks associated with importing hazardous substances which the first respondent would have to assess prior before permitting the activity and a separate licence is therefore needed.

The first respondent also contends that this is not a proper case for the granting of a declaratory order as the court is being called upon to amend legislation by combining distinct licensed activities under a single licence.

Costs on a higher scale are sought on the basis that the first respondent has been unnecessarily put out of pocket in a case where the regulations do not favour the interpretation advanced by the applicant.

Resolution of the Dispute

Section 10 of the Regulations provides as follows:

> "10. Manufacturing, storing, selling, using, importing, exporting, transporting of hazardous substances or movement thereof to be licenced or permitted.
> (1) No person shall –
> (a) manufacture, store, sell, use, import, export, transport or distribute hazardous substances specified in the Third Schedule except under the terms of a hazardous substance licence obtained at any office of the Agency 'or
> (b) transport in transit through Zimbabwe any consignment of hazardous substances by any means except under the terms of a permit issued by the Agency."

Indeed, the section does not especially state that there will be separate licences for each activity. The only activity dealt with separately is the transportation in transit through Zimbabwe for which a separate licence is to be applied for.

The First Schedule to the Regulations provides for registration fees for manufacturers, importers, storage and users of hazardous substances per facility, manufacturer, importer, sellers of hazardous substances.

Type of registration	**Annual**	**Licence**	**Fee US$**

1. Manufacturer, user, importer, seller, storage of hazardous substances/products per plant, per person, per premise respectively, per year		Red Amber Green	610.00 470.00 310.00

The golden rule of interpretation of statutes is that where the language used in a statute is plain and unambigous it should be given its ordinary meaning unless that would lead to some absurdity or inconsistence with the intention of the legislature.

If one were to say each activity of either manufacturing, using, importing, selling or storing a hazardous substance would be licenced separately, it would increase the licence fees for premise or person by the number of activities engaged in. The first respondent has however only isolated importation for a separate licence and not sought to split the rest of the activities.

That could not have been the intention of the legislature because the different activities have simply been listed together and a single fee prescribed.

In the same way that the First Schedule sets out that the licence fee is per plant, per person, per premise respectively per year, if it was intended to split the activities then that should have been expressly provided for. It was not.

I take a leaf from the case of *Delta Beverages (Pvt) Ltd* v *Zimbabwe Revenue Authority* HH 129-15 wherein MAKONI J (as she then was) posited that in a case dealing with interpretation of tax legislation, the *contra fiscum* rule will be applicable. This is a common law principle which stipulates that should a taxing statutory provision reveal ambiguity, the ambiguous provision must be interpreted in a manner that favours the taxpayer. See also *Endeavour Foundation & Anor* v *Commission of Taxes* 1995 (1) ZLR 339 (SC) @ 362 D-E.

It is the second respondent which has raised a separate licence for importation as the agent of the state tasked with assessment, collection and enforcement of payment of all revenues. A licence fee is often considered as a part of the overall tax or regulatory burden, especially when it is mandatory, collected by the government or acts as a condition to operate a business. It is therefore clear that the *contra fiscum* rule is applicable in this case.

I am therefore inclined to agree with the interpretation by the applicant which imposes a smaller burden on it. In any event this was the prevailing condition between the parties for the last sixteen years except for the December 2024 and February 2025 consignments when a separate import licence was demanded. The amounts demanded were waived. It was only in November 2025 when demand was enforced, and a separate import licence was paid for. A fine was also charged for importation of the consignment without a licence.

It was only then that the first respondent joined with the second respondent in stating that a separate import licence was necessary. The lack of a clear and consistent position enforced by both the first and second respondent confirms the ambiguity in the provision in issue.

As already stated for all the reasons above I uphold the interpretation advanced by the applicant that the Regulations provide for one composite licence and not a separate one for importation only.

The first respondent's further argument is that s 14 of the High Court Act grants the court the discretion to inquire and declare existent, contingent and future nights. The declaration order sought is said to be one where the court will be amending legislation in a manner not contemplated by the Legislature. The relief sought is said to be inappropriate, therefore.

The case of *Johnsen* v *Agricultural Finance Corp* 1995 (1) ZLR 65 (s) considered when a declarator should be granted. At paragraphs E – F on p 72 it was held that;

> "The condition precedent to the grant of a declaratory order under s 14 of the High Court of Zimbabwe Act 1981 is that the applicant must be an "interested person," in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. The interest must concern an existing, future or contingent right. The court will not decide abstract, academic or hypothetical questions unrelated thereto."

On the facts of this matter, it goes without question that the applicant has an interest in the subject of the dispute. The declaration is meant to protect the applicant's business which relies on importation of hazardous substances. The second respondent has in the past levied fines and refused to release consignments. This dispute is by no means academic or abstract or based on hypothetical questions.

In light of the above, the applicant has made its case for the granting of the order sought. Costs follow the cause.

The respondents, if they are so minded, can attend to the removal of the apparent – ambiguity in the Regulations. I note however that in the draft order the applicant has included categories of types of registration not covered collectively in the First Schedule. These are exporter and transporter. I will not include them in the order.

Accordingly, I order as follows:

1. It is declared that a Hazardous Substance Licence in terms of s 10 of the Environmental Management Control of Hazardous Substances (General) Regulations, 2018 (SI 268 of 2018) is a composite licence for a manufacturer, user, importer, seller and storer of hazardous substances.
2. It is declared that the respondents have no legal basis for demanding a separate Importation Licence in addition to the Hazardous Substance Licence that applicant is issued with. Such demand is declared null and void.
3. The applicant is allowed to import, stock, use, sell all petroleum lubricant products using a single Hazardous Substances green class licence.
4. The first respondent is ordered to reimburse USD 375.00 to the applicant which was paid on 1 December 2025 for an unlawfully levied import licence under EMA receipt No. HRPM 100 6053.
5. The first respondent shall pay costs of suit.

MUCHAWA J:……

Atherstone & Cook, Applicant's Legal Practitioners
Dube, Manikai & Hwacha, Respondent's Legal Practitioners

